

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
TRACEY KING,

Plaintiff,

SUMMONS

-against-

Index No.:

THE CITY OF NEW YORK, a municipal entity;
POLICE OFFICER KEITH GONZALEZ (Tax ID
No. 934936), in his individual capacity; POLICE
OFFICER JOHN DOE (whose real name is presently
unknown), in his individual capacity,The basis of venue is:
Location of the incident XPlaintiff designates Bronx
County as the place of trial.

Defendants.

-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: July 14, 2020
New York, New York

Yours, etc.,

Lance A. Clarke

Lance A. Clarke
Hamilton Clarke, LLP
48 Wall Street 10005
New York New York 10005
LC@HamiltonClarkeLLP.com

TO:

CITY OF NEW YORK
c/o CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER KEITH GONZALEZ (Tax ID No. 934936)
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TRACEY KING,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
POLICE OFFICER KEITH GONZALEZ (Tax ID
No. 934936), in his individual capacity; POLICE
OFFICER JOHN DOE (whose real name is presently
unknown), in his individual capacity,

VERIFIED COMPLAINT

Index No.:

Defendants.

-----X

Plaintiff TRACEY KING, by her attorneys, Hamilton Clarke, LLP and The Law Office of Joshua Moskovitz, as and for her Verified Complaint herein, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Constitution and laws of the State of New York, and the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983. Plaintiff seeks compensatory damages, punitive damages and attorney's fees.

PARTIES

2. Plaintiff, TRACEY KING, is a citizen of the United States and a resident of the County of New York, State of New York.
3. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY maintains the New York City Police Department ("NYPD") and assumes the risks incidental to the maintenance of a police force and the employment of police officers.
4. POLICE OFFICER KEITH GONZALEZ (Tax ID No. 934936) and POLICE OFFICER JOHN DOE (whose real name is presently unknown) were, at all times relevant herein, officers, employees and agents of the NYPD. They are referred to herein collectively as "the defendant officers."

5. Upon information and belief, the defendant officers were, at all relevant times herein, members of the NYPD's Vice Enforcement Unit, also known as NYPD Command 486.
6. The defendant officers are sued in their individual capacities.
7. At all times relevant herein, the defendant officers were acting under color of state law and in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their official functions as agents, servants, employees, and officers of the NYPD.
8. At all times relevant herein, the defendant officers were acting for and on behalf of the NYPD, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the pursuit of their official duties as officers, employees and agents of the NYPD.
9. At all relevant times, the defendant officers were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

COMPLIANCE WITH GENERAL MUNICIPAL LAW

10. In compliance with General Municipal Law § 50-i, Plaintiff served Defendant CITY with a Notice of Claim on July 18, 2019.
11. More than thirty (30) days have elapsed since service of said Notice of Claim and Defendant CITY has failed to pay or adjust said Claim.
12. This action is being brought within one year and ninety days of the events upon which Plaintiff's Claim is based.

STATEMENT OF FACTS

13. On April 25, 2019, the defendant officers arrested plaintiff TRACEY KING.
14. The defendant officers searched Ms. King and found no drugs, weapons, or contraband.
15. The defendant officers handcuffed Ms. King's hands behind her body.
16. The defendant officers placed Ms. King in an NYPD van
17. The defendant officers did not ensure that Ms. King was properly secured with a seatbelt.
18. The defendant officers transported Ms. King to various locations, including locations in the Bronx.

19. While in the police van, Ms. King cried repeatedly that her wrists and shoulders were in pain.
20. Because the defendant officers had not properly secured Ms. King with a seatbelt, Ms. King's body swung violently throughout the trip while her handcuffed hands were stuck in the seat behind her.
21. The defendant officers could hear Ms. King complaining and crying that she was in pain.
22. The defendant officers did not stop the van to help Ms. King and they ignored her cries for help.
23. Ms. King continued crying and complaining of her pain.
24. Ms. King complained loudly several times that her handcuffs were stuck and too tight and requested they be loosened, but the defendant officers did not loosen the handcuffs or help Ms. King.
25. The defendant officers continued to ignore Ms. King's cries for help as they transported her in the van for several hours
26. During that time, Ms. King remained handcuffed in excessively tight manner and was not properly secured with a seatbelt.
27. Despite having realistic opportunities to do so, none of the defendant police officers intervened on plaintiff's behalf to prevent the continued violation of her constitutional and civil rights.
28. As a result of the defendant officers' actions, inaction, and indifference to Ms. King's pleas for help, Ms. King suffered severe pain and serious physical injuries.
29. Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**FIRST CLAIM FOR RELIEF
(AGAINST THE DEFENDANT OFFICERS)
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

30. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
31. All of the aforementioned acts of the defendant officers were carried out under the color of state law.

32. The acts complained of were carried out by the defendant officers in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
33. As a result of the foregoing acts by the defendant officers, plaintiff was deprived of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, including, but not limited to, the right to be free from unreasonable seizures, the right to due process, and the right to appropriate care while in police custody.
34. The defendant officers had adequate opportunity to intervene to prevent the violation, and continued violation, of plaintiff's constitutional rights, but unreasonably failed to do so.
35. As a result of the defendant officers' impermissible conduct and failure to intervene, plaintiff was injured and harmed.
36. As a result of the foregoing acts, the defendant officers are liable for plaintiff's injury under 42 U.S.C. § 1983.
37. The defendant officers' conduct was wanton, malicious, and of such an egregious nature that punitive damages are warranted.

**SECOND CLAIM FOR RELIEF
(AGAINST ALL DEFENDANTS)
NEGLIGENCE UNDER NEW YORK STATE LAW**

38. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
39. Defendant CITY, acting through the NYPD, maintains a Patrol Guide that sets forth the proper rules and procedures for NYPD police officers in the course of their duties.
40. The NYPD Patrol Guide requires police officers to inspect the seatbelts in police vehicles at the beginning of each tour of duty to ensure the seatbelts are in working order.
41. The NYPD Patrol Guide states that there is an increased risk of significant injury when a seatbelt is not worn.
42. "Therefore," according to the Patrol Guide, "the wearing of safety belts is required for all individuals operating or riding in a Department vehicle."
43. The death of Freddie Gray in 2015, which occurred because Mr. Gray was not properly secured inside of a police van while being transported after his arrest, received national media attention.
44. The defendant police officers knew they had a duty to properly secure the plaintiff in the van.

45. The defendant police officers failed to use reasonable care in securing the plaintiff in the van.
46. As a result of the foregoing, the plaintiff was injured and harmed.
47. Defendant City is liable for the plaintiff's injuries under the doctrine of *respondeat superior*.

**THIRD CLAIM FOR RELIEF
(AGAINST ALL DEFENDANTS)
ASSAULT UNDER NEW YORK STATE LAW**

48. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
49. The handcuffs were too tight and were left on for unreasonable periods of time.
50. By the aforescribed conduct, the individual NYPD defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
52. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
53. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**FOURTH CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW**

54. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
55. The defendant officers grabbed Ms. King, placed handcuffs on her wrists in an excessively tight manner, placed her in the back of a police van alone, failed to secure Ms. King's seatbelt, failed to inspect, loosen and remove Ms. King's handcuffs which were stuck behind her seat, drove to multiple locations, and left her alone for over 30 minutes as she cried out in pain to no one.

56. Not only were the handcuffs too tight and stuck behind her seat, they were left on for unreasonable periods of time while the defendant officers drove to several locations.
57. By the aforescribed conduct, Defendants and their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.
58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
59. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of *respondent superior*.
60. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff TRACEY KING demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action, inclusive of compensatory damages, punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
July 14, 2020

Respectfully Submitted:

By: Lance A. Clarke
Lance A. Clarke
Hamilton Clarke, LLP
48 Wall Street, Suite
New York, New York 10005
(212) 729-0952

Joshua S. Moskovitz
The Law Office of Joshua Moskovitz
233 Broadway, Suite 2220
New York, New York 10279
(212) 380-7040

Attorneys for Plaintiff

[illegible]

I am an attorney for the plaintiff in the within action and my office is located at 48 Wall Street, New York, New York 10005, which is within the County of New York. This verification is made by me because the plaintiff is not within the County of New York, which is the county where I have my office.

Dated: July 14, 2020

Lance A. Clarke

Lance A. Clarke